One California case related to comparative negligence defense, where the defendant argues that the plaintiff's negligence contributed to their harm, is in *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975), which uses the statute law Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly).

The issue in *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975) is whether California should continue to apply the traditional "all-or-nothing" rule of contributory negligence, or adopt a system of comparative negligence, where damages are reduced in proportion to the plaintiff's fault. It also considers whether the application of the comparative negligence system impacts the Cal. Civ. Code § 1714 that was included in the case law analysis.

Under the California Supreme Court in *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975), held that the state should abandon the old rule of contributory negligence, which prevented a plaintiff from recovering any damages if they were partially at fault, and adopt the "pure" comparative negligence system. Under this new system, if both the plaintiff and the defendant share fault, the plaintiff's damages will be reduced in proportion to their level of fault, based on the combination of the old doctrines of "last clear chance" and "assumption of risk" into a broader form of comparative negligence. Under the Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly), it uses this system, allowing a legal defense against comparative negligence where the defendant can argue that the plaintiff's negligence played a role in their injuries, which can lower the damages the defendant has to pay and that individuals are responsible for injuries caused by their negligence, their liability can be reduced based on how much fault the plaintiff shares in causing the injury.

Here, in *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975), the plaintiff Li was involved in an accident with a Yellow Cab. The trial court initially applied the contributory negligence rule, which denied Li recovery because he was found to have contributed to the accident. However, the California Supreme Court overruled this, adopting pure comparative negligence. In doing so, the court clarified that Li's damages should be reduced according to his share of the responsibility for the accident, rather than barring recovery entirely under the new system and using Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly). The court explained that under Cal. Civ. Code § 1714 with the application of comparative negligence, the plaintiff's recovery could be diminished but not entirely denied based on their proportion of fault. Specifically, this statute establishes that fault is to be allocated proportionally, reflecting a shift away from the older system of contributory negligence, which would bar recovery if the plaintiff was at all negligent. This defense allowed for a reduction in damages based on the plaintiff's degree of fault, ensuring that the plaintiff's recovery was not entirely barred despite contributing to their injuries.

In conclusion, the California Supreme Court in *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975) established a new standard by adopting the system of pure comparative negligence, in which a plaintiff's damages are reduced in proportion to their fault, but they are not completely barred from recovery based on the new adaptation and using the Cal. Civ. Code § 1714. Adoption of Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly), allowed fairness and equity in negligence claims where individuals are responsible for their negligence, but allows for proportional liability. By eliminating the doctrines of "last clear chance" and "assumption of risk," the court combined these defenses as a broader term of comparative negligence, which is applicable in modern-day cases where the trial did not begin.

However, in dissent, Justice Clark disagreed with the majority's decision to adopt comparative negligence, arguing that the court's departure from the long-standing rule of contributory negligence was an abuse of judicial power. He believed that the rule of contributory negligence under Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly) was clear in its intent, had been applied in many cases, such as the *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975), and that changing the interpretation of the statute is a law change that should have been left to the legislature, not the judiciary. Justice Clark also argued that adopting comparative negligence was not the right solution, which could lead to inconsistent outcomes in different cases, and that it should be up to the legislature to decide whether to adopt this system. This case provides the foundational legal principle of comparative negligence in California, which is a key defense when the defendant argues that the plaintiff's own negligence contributed to their harm.

To help visualize this due to its complexity, in *Sherlock Holmes: The Devil's Daughter*, the Chain Reaction case involves a series of accidents, or a "chain of events," triggered by multiple factors, making it an ideal scenario for applying the legal concept of comparative negligence defenses. In comparative negligence, liability is divided according to each party's degree of fault. In the Chain Reaction case, multiple parties contribute to the accidents, with each party potentially arguing that others bear more responsibility, thereby adjusting their own liability. For instance, if one party caused part of the accident, such as an electrical company failing to properly secure wires, but another party contributed through their own negligence, such as a driver failing to act cautiously, each could argue that their fault is less than that of others. Although the case is fictional and set in the past, it is similar to real-world cases where multiple parties are responsible for an accident and damages are apportioned according to the degree of negligence of each party contributing to.

Thank you.

-Victoria Lee

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Hello

Your post eloquently explains the assumption of risk defense by the *Nelson v. Great E. Resort Mgmt., Inc.* case, which uses Virginia law by explaining that the defense pertains to recreational activities like snow tubing, is clear, and grounded in case law. You have a valid point that the assumption of risk is a defense where the defendant argues that the plaintiff voluntarily took on the known risks inherent in a specific activity. It makes sense that, based on the *Nelson* case you chose, Massanutten asserted that Nelson voluntarily participated in snow tubing, fully understanding the potential risks, including injury from collisions. I liked how you also include the Virginia Supreme Court's stance on assumption of risk, requiring the jury to assess what the plaintiff knew about the risks involved, as opposed to an objective test. Your additional breakdown about the limits of the defense involving risks not inherent to the activity or risks arising from the defendant's negligence helped me see how Virginia courts balance the defense with the need for factual inquiry into the plaintiff's awareness.

When contrasting the assumption of risk defense in your post v. the comparative negligence defense in my post, it allowed me to see why and how these two types of defenses are significant. Assumption of risk involves a situation where the plaintiff voluntarily accepts the risks of an activity, thereby barring recovery for injuries that are inherent to that activity. This is a more absolute defense in that it can completely preclude a plaintiff's recovery if they knowingly assume the risk. In contrast, the comparative negligence defense in *Li v. Yellow Cab Co.*, reduces the plaintiff's recovery proportionally based on their degree of fault but does not entirely bar recovery. This system allows for a more flexible approach, where the plaintiff can still recover damages even if they contributed to their own injury, though those damages are reduced according to their level of fault.

To visualize your assumption of risk in a simpler form, in *Sherlock Holmes: The Devil's Daughter*, in the case A Study in Green, the concept of assumption of risk is closely tied to how characters Holmes or Watson willingly engage in dangerous situations, knowing the risks involved. Just like in the Nelson v. Great E. Resort Mgmt. case, where a person accepted the known risks of snow tubing, like getting injured, the characters in the game the characters choose to participate in risky activities like investigating criminal schemes, entering Albeit's house

(without a warrant), or exploring the mysterious cursed pyramid (without any backup), despite understanding the risks of injury/death are present based on their actions. Similarly, the side character Albeit is aware of the risks when engaging in criminal and dangerous actions related to the Mayan artifacts and curse. In the game, these characters (main and side characters) voluntarily take part in high-stakes scenarios, understanding the risks, much like a person in a dangerous activity such as snow tubing or a contact sport would. Although the case is fictional and set in the past, it has similar concepts to real-world cases where the assumption of risk defense would prevent a person or entity from suing others for injuries because they knowingly accepted the danger by participating. The only difference is that in this game, there is liability as it is fictional, but in modern day, this would be a defense since the participants accepted the risks and knowingly knew the consequences.

Best regards,

Victoria

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Hello

Your post thoroughly analyzes contributory negligence and cogently explains it based on this week's lessons about negligence. Your chosen jurisdiction of North Carolina allowed me to see how the court's approach to contributory negligence, where a plaintiff is completely barred from recovery if they are found to be even minimally negligent, regardless of the defendant's actions. You have valid explanations that the case *Max S. Miller v. Wincie Clarice Miller* demonstrates this best, where the North Carolina Supreme Court held that the plaintiff's negligence, no matter how slight, would preclude any recovery from the defendant. I also find it intriguing how North Carolina provides an exception through the *Last Clear Chance Doctrine*, which allows a plaintiff to recover damages if the defendant had the last opportunity to avoid the accident, even if the plaintiff was partially at fault.

When contrasting it to my post of how California handles comparative negligence, I further explain that California initially started off with he contributory negligence and then shifted to comparative negligence. This is mentioned because comparative negligence was not yet used, and the previous method was the contributory negligence method. I used this case chosen, which is *Li v. Yellow Cab Co.*, 13 Cal. 3d 804, 119 Cal. Rptr. 858, 532 P.2d 1226 (Cal. 1975), which

uses the statute law Cal. Civ. Code § 1714 (West, Westlaw through Ch. 1 of the 2025 Regular Session of the General Assembly), which explains how the courts handle comparative negligence in CA. Under California's new system, a plaintiff's damages are reduced in proportion to their fault rather than being completely barred. In this case, the California Supreme Court moved away from the traditional “all-or-nothing” approach of contributory negligence, allowing plaintiffs to recover a portion of their damages even if they contributed to their own injuries. This system promotes a more equitable outcome by considering the degree of fault on both sides and reducing the plaintiff's recovery only in proportion to their own negligence. I noticed that the comparative negligence model, unlike North Carolina's contributory negligence rule (harsh all-or-nothing approach), ensures that parties are not penalized too harshly for minor contributions to an accident. While both systems recognize the role of plaintiff fault in determining liability, California’s comparative negligence system strikes a more balanced approach, leading to fairer outcomes for all parties involved.

A real life example of this comparisons between the two defenses is a car accident involving a pedestrian, if the case occurred in North Carolina, the pedestrian (Driver C) could be completely barred from recovering damages if found even slightly at fault, like jaywalking, due to the state's strict contributory negligence rule. In contrast, under California’s comparative negligence system, Driver C would still be able to recover damages, reduced in proportion to their fault. For example, if Driver C were a little at fault, they could still receive the majority of their damages. This demonstrates how California’s system offers a fairer outcome by allowing recovery based on the degree of fault, while North Carolina’s rule could unjustly deny compensation altogether.

Overall, your post provided a detailed and insightful analysis of contributory negligence in North Carolina in their use of the all-or-nothing approach versus California's comparative negligence system preference for a fairer way to allocate responsibility and compensation. Your explanation clarified how these two defenses impact plaintiffs in real-world cases.

Best regards,

Victoria

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Max S. Miller v. Wincie Clarice Miller, 273 N.C. 228 (1968).

Hello

Your post eloquently analyzes contributory negligence and cogently explains it based on this week's lessons about negligence. Your breakdown about how in Mr. Palenchar, the court focused on whether he, as the favored driver under Maryland's Boulevard Rule, acted negligently in a way that contributed to the accident. It makes sense that even though the favored driver typically has the right of way and the unfavored driver is presumed negligent if they fail to yield, this right of way is not absolute, with the supporting evidence of *Palenchar v. Jarrett*. I liked how you explained that in this case, a favored driver must still exercise reasonable care and cannot ignore clear hazards, and for contributory negligence to be considered by a jury, the unfavored driver had to show that Mr. Palenchar's actions—such as inattentiveness—were a proximate cause of the crash.

When comparing the defenses to our cases, the difference is between contributory negligence versus comparative negligence. For your jurisdiction, Maryland, the case *Palenchar v. Jarrett*, demonstrates that contributory negligence is a strict rule where if the plaintiff is found to have contributed to the accident in any way, they are completely barred from recovery. I found this rather quite harsh as it requires the plaintiff to be entirely without fault to recover damages. I wonder how fair this would be if certain evidences lead to exceptions and if Maryland dismisses them. Meanwhile, in the jurisdiction of California, the case, *Li v. Yellow Cab Co.*, reflects California's adoption of pure comparative negligence, which replaced the all-or-nothing approach of contributory negligence. Under this system, the plaintiff's recovery is merely reduced in proportion to their fault. I noticed that this is a fairer approach, allowing for partial recovery even when the plaintiff shares some blame (an exception with evidence). While Maryland strictly bars any recovery if contributory negligence is found, California allows shared fault and proportional recovery, signaling a broader and more forgiving approach to negligence claims.

On a side note, to connect it with another post, I find your Maryland jurisdiction quite similar to North Carolina (Nicholas's post) in how the court's approach to contributory negligence, where a plaintiff is completely barred from recovery if they are found to be even minimally negligent, regardless of the defendant's actions. Unless my analysis is off…

Overall, these three interactions between the jurisdiction with contributory negligence versus comparative negligence were insightful and gave me a better examination of the case law/statue law. I can see why negligence definitions are crucial and need a better comprehension compared to a negligence claim, which I find much easier to conclude (negligence theory). Thank you for taking the time to expand on your jurisdiction for Maryland in how the courts handle contributory negligence!

Best regards,

Victoria

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Hello

Your post cogently analyzes economic duress defenses in Texas and explains how it is correlated to this week's lessons about negligence defenses. I find it intriguing that you choose to use economic duress as a legal defense in response to a negligence claim in Texas. You have valid explanations that in *Sudan v. Sudan*, duress occurs when a defendant is coerced into acting against their will due to unlawful or wrongful threats, which can be used to negate liability in negligence cases. The way you bork down the elements required to establish economic duress, allowed me to see how the Texas Supreme Court rejected a claim of economic duress in a contract dispute, demonstrating that the defendant must show coercion and the lack of alternative options to successfully use this defense.

When contrasting it to my post, I used the defense of comparative negligence in California, explaining how a defendant can argue that the plaintiff's negligence contributed to their injury, thereby reducing the damages the defendant must pay. In *Li v. Yellow Cab Co.*, the California Supreme Court adopted a system of pure comparative negligence, allowing a plaintiff's damages to be reduced based on their level of fault. But unlike economic duress, which involves coercion by threats, comparative negligence focuses on the relative responsibility of each party in causing harm, and it does not bar recovery entirely but reduces it proportionally based on fault.

An example that I can see your economic duress defense with my comparative negligence is when hackers take over a hospital's records and demand a ransom for their release. This is correlated to economic duress as the hospital could argue a defense where they acted under economic duress due to being coerced by the threat of losing access to critical patient data. This mirrors the concept of economic duress, where a party is forced into making a decision due to unlawful threats. The hospital's decision to pay the ransom could be seen as involuntary, due to the fac that they were hacked and to release the hack they must pay a fee. While this case would primarily involve economic duress, if the hospital's own negligence contributed to the breach, like poor cybersecurity measures, comparative negligence might come into play, potentially reducing any liability or damages by considering the hospital's share of fault as well.

Overall, your post thoroughly addresses the reasons why economic duress defense is another defense tactic in this week's topics of negligence defenses. Thank you for sharing your thoughtful inputs!

Best regards,

Victoria

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